*THE* **CUBAN MISSILE** crisis is important at three distinct levels. First, the crisis stands for something central in our time: we live under the cloud of nuclear weapons. Our imaginations have been dulled by metaphors. But it is nonetheless true that today men control the power to destroy mankind. Second, this crisis is a microcosm of problems of the modern American Presidency. Crises tend to highlight the basic characteristics of an institution. The Cuban missile crisis does this for a number of dilemmas in our governmental system. Third, this event poses dramatically a central constitutional issue for the 1970's: namely, the respective roles of President and Congress in making war. During the Cuban missile crisis, the President alone decided and disposed. Two hours before his decision was announced to the world, Congressional leaders were *informed* that the United States was responding to the Soviet missiles with a naval quarantine.

Comparable presidential authority has been asserted even where there is no direct threat of nuclear war. Relying on the minimal Congressional consent represented by the Tonkin Gulf Resolution, President Johnson committed American ground forces to what has become the longest war in our history. Relying on inherent powers of the Commander in Chief to protect American troops, President Nixon ordered an invasion of Cambodia. The Constitution calls for Congress to declare war. But in these cases—as with others in our history—Congress has not played a commensurate role. The result is a great argument over the constitutional balance in warmaking. The missile crisis offers some perspective on this argument.

## THE NUCLEAR PARADOX

In October 1962, President John Kennedy chose a path of action that, in his judgment, entailed a one-in-three chance of nuclear war.* Given the potential consequences, how could he possibly have chosen this course? Robert Kennedy participated in the choice, approved of it, and took pride